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6. RURAL DEVELOPMENT

6.1 RURAL SUBDIVISION - GENERAL FARMING AREAS - ZONE 1(A) AND ZONE 7

The primary areas identified for agricultural production and other primary industry in the City have been included in Rural Zone 1(a) General Farming and Zone 7 Environment Protection under LEP 2000. Zone 7 relates to the water-supply catchments for Suma Park Reservoir and the Molong Water Supply Catchment. LEP 2000 recognises that rural land can be used in a number of ways. In the City, rural land is predominantly used for grazing, cropping and cold-climate fruit growing. Vineyards have also become popular in recent years. Forestry and extractive industries (gravel and

hard-rock quarries) are also found in the general rural areas.

The LEP provides for a range of lot sizes on rural land with opportunities for associated dwelling houses according to the following:

- 100 hectares or larger for general agriculture or any other permissible purpose;
- between 40 and 100 hectares subject to a farm plan indicating agricultural viability;
- less than 40 hectares but no less than 16 hectares for established horticulture or viticulture;
- lots of any size for a specific purpose other than development for the purposes of a dwelling house or agriculture.

Where lots to be created provide for a dwelling house, investigations will be required to determine suitable house site(s).

CLARIFICATION OF EXEMPT DEVELOPMENT – RURAL BOUNDARY ADJUSTMENTS

The NSW General Exempt Development Code applies to all land within the City of Orange LGA and is prescribed under Part 2 of State *Environmental Planning Policy (Exempt and Complying Development Codes) 2008*. Subdivision 38, Clause 2.75 of the Code provides for the subdivision of land to be carried out without development consent in certain circumstances.

Defining “Minor”

Exempt development must be low-impact in both scale and effect. Accordingly, “minor change” should consider both:

• **Quantitative factors** — the size of the area being transferred, and

• **Qualitative factors** — impacts on land use, functionality, and environmental values.

Variation in Lot Sizes

Lots in RU1 Primary Production and C3 Environmental Management zones are highly variable, with 61.5% smaller than 10ha. A fixed 10% threshold may have vastly different outcomes depending on context. For example, transferring 5ha from a 50ha lot to a 2ha lot increases the smaller lot by 250%, despite appearing minor for the donor lot. (See **Figure 4**.)

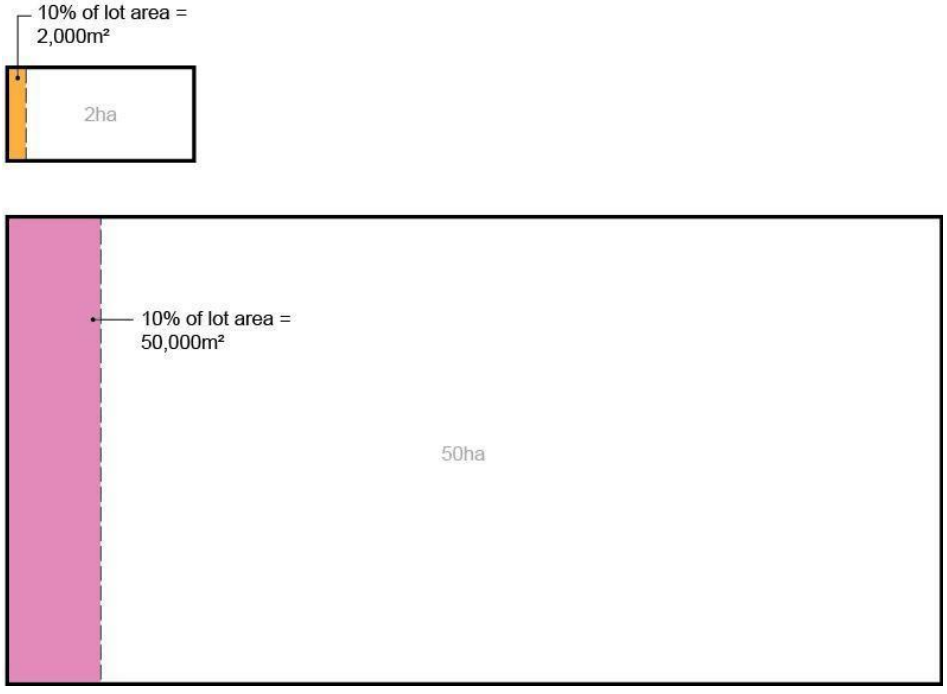


Figure 1 - Comparable effects of lot size for determining a “minor change in the area of any lot” due to a boundary realignment

This disproportionality illustrates why a single benchmark is inadequate.

(iii) Variation in Lot Shapes

The impact of boundary shifts also depends on lot geometry. Adjusting a 10m strip from a square 1ha lot may reduce area by 10%, while the same adjustment on a long narrow lot may change area by 5% or 20%, depending on boundary orientation (**Figure 5**).

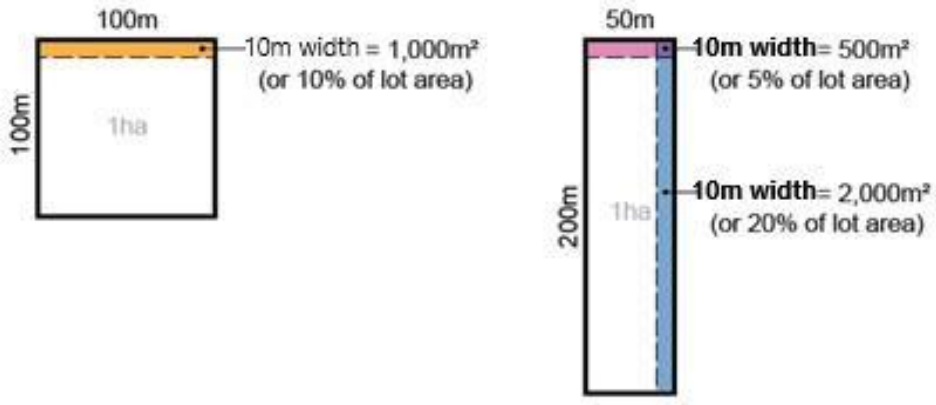


Figure 2 - Comparable effects of lot boundary dimensions for determining a "minor change in the area of any lot" due to a boundary realignment

This further supports a graduated approach that accounts for shape and context, rather than applying a rigid percentage.

To manage these complexities, a sliding scale tailoring the allowable change to lot size is outlined. This provides a clear quantitative guide while remaining sensitive to the diversity of rural land holdings. It should be used as an initial screen, with final determinations considering planning objectives to ensure no material environmental or functional impact arises from the realignment.

Numeric Criteria for "Minor Change in Area"

The following can be utilised to assist in determining "a minor change in the area of any lot" under Sub-subclause 2.75(b)(vi) of the Code.

Table 6.1 (1) - Proposed numeric standards for determining a "minor change in the area of any lot" for the purposes of undertaking a lot boundary realignment as exempt development.

Original Lot Size (A)	Minor Change in Lot Area is Equal to or Less Than:
2 hectares or less	10% of Original Lot Size
Greater than 2 hectares but less than 50 hectares	% allowable (y) = 10% - ((A-2)/
50 hectares or greater	1

where A = original lot size (hectares)

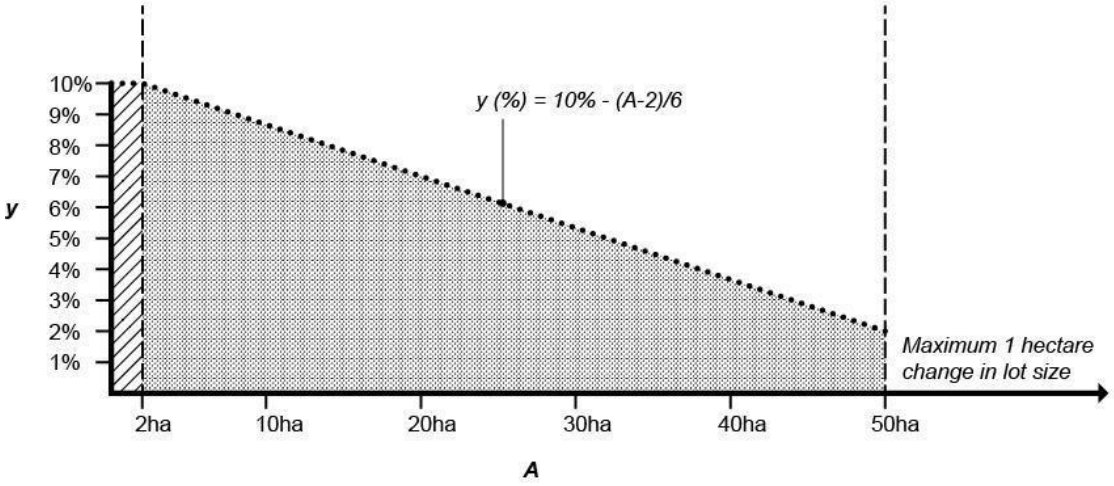
Table 1 and **Figure 3** set out a recommended sliding scale:

• For lots ≤2ha: up to 10% area change (consistent with non-rural zones);

• For lots >2ha and <50ha: allowable change decreases as lot size increases;

• For lots ≥50ha: capped at 1ha absolute area change.

This approach ensures that larger realignments cannot be classified as exempt while preserving flexibility across diverse rural lot sizes. It balances proportional fairness with the need to avoid high-impact changes proceeding without oversight.



where:

y = maximum % change in lot size

A = original lot size (hectares)

Figure 3 - Proposed sliding scale for determining a "minor change in the area of any lot" for the purposes of undertaking a lot boundary adjustment as exempt development.

For example, a lot constituting 48 hectares and a neighboring lot constituting 3.8 hectares would represent an allowable percentage change of 2.3% (representing 1.1 hectares) and 9.7% (representing 3686 square metres) respectively.

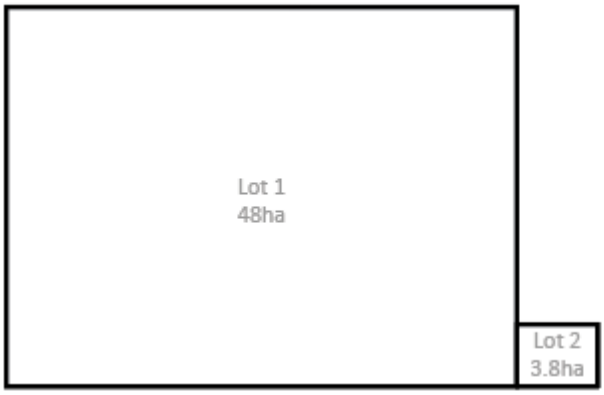


Figure 4 - Example Scenario

Under the following scenarios:

1. If the owner of the 48 hectare lot was trying to gain an additional 3 hectares this would not be considered minor as both lots exceed the allowable percentage. The applicant may then proceed with a Development Application as a rural boundary adjustment if considered appropriate under the clause and relevant case law.

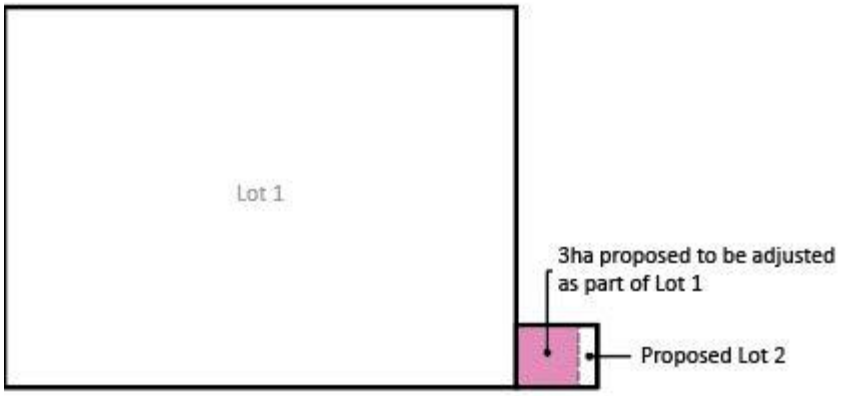


Figure 5 - Example Scenario 1

2. If the owner of the 48 hectare lot was trying to gain an additional 1 hectare this would not be considered minor as it exceeds what would be considered as minor for the 3.8 hectare. The applicant may then proceed with a Development Application as a rural boundary adjustment if considered appropriate under the clause and relevant case law.

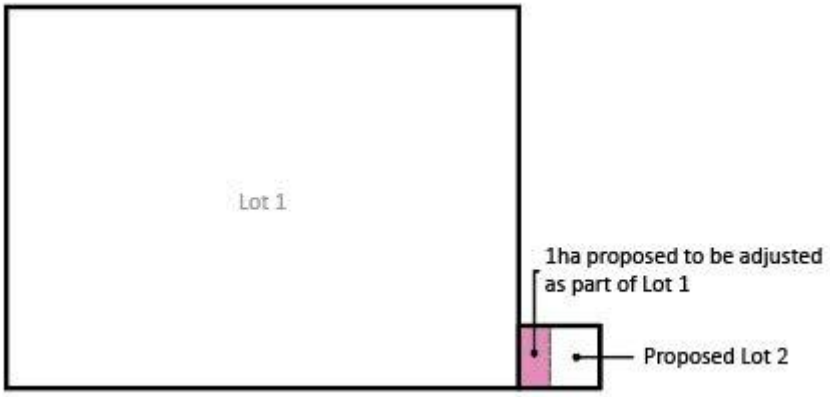


Figure 6 - Example Scenario 2

3. If the owner of the 3.8 hectare property was adjusting the boundary gaining 3000 square metres this would be considered minor under the above methodology for both lots and could proceed as an exempt development.

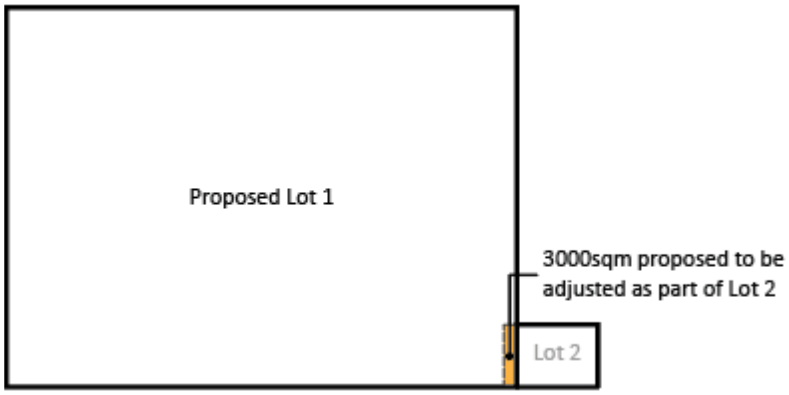


Figure 7 - Example Scenario 3

DEVELOPMENT APPLICATIONS UNDER 4.2D OF THE ORANGE LOCAL ENVIRONMENTAL PLAN 2011

Legal Considerations when assessing lot boundary adjustments.

NSW Land and Environment Court cases have helped clarify what qualifies as a "lot boundary adjustment" under LEPs. Key principles from decisions such as:

- Ousley Pty Ltd v Warringah Shire Council (1999)
- McCabe v Blue Mountains City Council (2006)
- Barnes v Dungog Shire Council (2012)
- Johnson v Coffs Harbour City Council (2018)

which establishes:

- The resulting lots must bear a clear "resemblance" to the original configuration;
- Adjustments must not involve major reconfiguration or effectively constitute consolidation followed by re-subdivision;
- Significant changes in shape, size, or function may exceed what the courts deem a legitimate "adjustment."

PO 6.1-1 PLANNING OUTCOMES FOR RURAL HOUSE SITES	
1	House sites are located in a manner that does not inhibit normal farming practice either on the land or on land in the vicinity, in order to minimise potential agricultural/residential conflicts, refer to **table PO 6.1(1)**.
2	Houses are orientated in a manner that optimises solar orientation and provides protection from prevailing winter winds (refer Council's Smart Homes Energy Code).
3	General farming lots and associated location of dwelling houses should be undertaken in a manner that optimises the potential for economic use of the most productive land.
4	Houses are located to facilitate access to a public road and power supply.
5	House sites are located outside water-supply catchment areas.

6.2 SUBDIVISIONS CREATING LOTS 40 HA AND GREATER

This minimum area was first introduced in Orange in the 1960s as a State wide policy to limit unsustainable fragmentation of rural land. There are about 160 holdings with areas equal to or greater than 40 hectares in Zone 1(a) and Zone 7 within Orange City.

A Farm Plan is required to be submitted in support of applications to create lots less than 100 Ha. For further information on Farm Plans, refer to Part 6.8 below.

PO 6.2-1 PLANNING OUTCOMES FOR 40 HA+ SUBDIVISIONS

1 Lot size and shape maximise the agricultural potential of the land.
2 Development applications demonstrate how the lot configuration provides for the sustainable use of the land as a resource.
3 Development applications demonstrate that an environmental benefit is derived from the subdivision (such as conservation of remnant vegetation, soil conservation and enhancement of waterways).
4 Works associated with environmental conservation as outlined in the Farm Plan are implemented prior to issuing a subdivision certificate.
5 Applications identify suitable house sites with adequate separation from agricultural activities or other primary industries and not reduce a lot's capacity to comply with relevant buffers or separation distances in accordance with **table PO 6.1(2)**.
6 House sites are identified that are suitable for on-site sewage disposal and removed from creeks, drainage depressions and flow lines.
7 Development applications demonstrate that a house site or sites are suitable for building and on-site sewage management systems are free from contamination.
8 Appropriate access to a public road is provided.

6.3 HORTICULTURE LOTS (BETWEEN 16 AND 40 HA)

Orchards growing cold-climate fruit have been established in the Orange area since the mid-1800s. The City also has a history of grape growing. For example, grapes were grown in 1885 on 10.25 acres at Duntryleague. Historical photographs of land in the Canobolas area also indicate the planting of grapevines.

Orchards are primarily located in the Canobolas area, on the basalt-derived soils. Orchards are also located near Lucknow and Shadforth. Vineyards are more dispersed throughout the rural areas.

Horticultural enterprises must already be established or applications must adequately demonstrate commitment to establishment in order to satisfy the performance-based planning approach to creating lots less than 40 hectares.

Council may defer approval of a dwelling house until the horticultural/viticultural enterprise has reached a stage of development where a dwelling house is justified.

PO 6.3-1 PLANNING OUTCOMES FOR 16-40 HA HORTICULTURE SUBDIVISIONS

1 The land is used either for an existing horticultural/viticultural enterprise or arrangements have been made to the satisfaction of the Council to provide for the establishment of such an enterprise.
2 The development promotes sustainable agriculture.
3 The works have been carried out on vacant land in accordance with the approved Farm Plan prior to erection of any dwelling house.
4 Applications provide information demonstrating, to the satisfaction of Council, that the land is capable of sustaining horticulture or viticulture in accordance with a professionally-prepared **Farm Plan** (Refer to Part 6.8).
5 Applications identify suitable house sites with adequate separation from agricultural activities or other primary industries and not reduce a lot's capacity to comply with relevant buffers or separation distances in accordance with **table PO 6.1(2)**.
6 Development applications demonstrate a house site or sites suitable for building, on-site sewage-management systems free from contamination and a clear distance from creeks, natural drainage depressions and flow lines.
7 Suitable access to a public road is provided.
8 The number of accesses to a main road are not increased.

RELATED INFORMATION – HORTICULTURE LOTS

1 NSW Agriculture, *Intensive Agriculture and the Development Control Process* Agnote DPI-261
2 NSW Agriculture, *Policy for Sustainable Agriculture in New South Wales*

6.4 CONCESSIONAL LOTS

BACKGROUND

Concessional lots were introduced in the 1960s with a 40-hectare subdivision policy for rural-based planning instruments across NSW. Concessional lots were originally provided as a "concession" to rural producers and their families for the introduction of minimum lot sizes. Concessional lots were initially intended to provide for farming families to continue to stay in their house on a small acreage while on-selling the remainder as a farming enterprise. The concessional lot has since become seen as a rural-lifestyle opportunity.

ISSUES

The dispersal of small residential lots in rural areas has the potential to alienate agricultural land, affect farming practices from conflicts between residents and primary producers, increase demand for services and contribute to environmental pressures. Planned small holding or "rural residential" areas are preferred to unplanned, uncoordinated small lots scattered throughout rural areas.

Water-supply catchments in the local area are affected by significant nutrient-generation rates, probably as a consequence of natural processes (such as erosion of fertile soils) and land use. Dwelling houses on concessional lots relying on on-site sewage-management systems have the potential to contribute further to the generation of nutrients in water-supply catchment areas.

Concessional lots are limited to one lot under LEP 2000. Under previous planning instruments, up to 3 lots were possible. LEP 2000 provides for the last concessional lot to be subdivided subject to specified criteria:

(a) A concessional lot only may be excised from land (being a rural holding) comprising the whole of an original holding (ie, a holding in the same configuration of parcels, portions or lots as it was in 1964) and has an area of at least 16 hectares; or
(b) A concessional lot may be excised from land that comprises the residue of an original holding where one concessional lot had been previously excised since 1964, subject to Council approval in accordance with the planning instrument at that time, and where the area of the original holding (ie, the combined area of the residue and excised lot) is at least 20 hectares, or
(c) A concessional lot may be excised from land that comprises the residue of an original holding where up to two concessional lots had been previously excised since 1964, subject to Council approval in accordance with the planning instrument at that time, and where the area of the original holding (ie, the combined area of the residue and excised lot) is at least 30 hectares,

A maximum lot size of 2 hectares applies in order to limit the alienation of rural land.

Concessional lot provisions ceased on 12 May 2003

Where a concessional lot subdivision will require access to a Main Road from more than one lot, including any lots previously excised or the residue lot, then the subdivision shall not result in an increase in the number of accesses to the main road unless the RTA approves additional accesses.

Land suitability and relationship between residential development and primary industry are significant issues relating to concessional lots.

PO 6.4-1 PLANNING OUTCOMES FOR CONCESSIONAL LOTS

1 Applications shall identify a suitable house site(s) with adequate separation from agricultural or other primary industries (refer below for information on buffers);
2 House sites shall be suitable for sewage disposal and located away from creeks, drainage depressions and flow lines.
3 Development applications shall demonstrate that a house site or sites are suitable for building and on-site sewage management systems, are free from contamination and are clear distance from creeks, natural drainage depressions and flow lines.
4 Access from the lot to a public road shall have adequate sight distance and entrances set back from the road to permit vehicles to be parked off the entrance clear of the road carriageway.
5 The subdivision does not create additional entrances to a main road.
6 Significant vegetation is retained as a consequence of the development.
7 The excised lot shall be situated on land identified as having the lowest agricultural capability or areas that will have the lowest impact on the use of the residue land for agriculture.
8 Excised lots shall be located on that part of the land within Zone 1(a) or include a house site within that zone where land is affected by both Zone 1(a) and Zone 7.

Concessional lot provisions ceased on 12 May 2003

6.5 GENERAL RURAL PLANNING ISSUES

RURAL FIRE MANAGEMENT AND CONTROL

The design of rural development are to provide for reasonable bushfire-protection measures.

Where development, including subdivision, is proposed for land identified as being bush fire prone, the development must comply with the provisions of the Planning for Bushfire Protection Guide.

Applications for the following types of development may need to be referred to the Rural Fire Service (RFS) as integrated development under the Act:

i. a subdivision of bush fire-prone land that could lawfully be used for residential or rural residential purposes, or
ii. development of bush fire-prone land for a special fire-protection purpose.
iii. a school,
iv. a child-care centre,
v. a hospital (including a hospital for the mentally ill or mentally disordered),
vi. a hotel, motel or other tourist accommodation,
vii. a building wholly or principally used as a home or other establishment for mentally-incapacitated persons,
viii. housing for older people or people with disabilities within the meaning of *State Environmental Planning Policy No 5—Housing for Older People or People with a Disability*,
ix. a group home within the meaning of *State Environmental Planning Policy No 9—Group Homes*,
x. a retirement village.

Bush Fire-Prone Land is identified on Bush Fire-Prone Area Maps prepared for Council in conjunction with the RFS. All rural land is deemed to be fire prone pending preparation of a Map.

RELATED INFORMATION – RURAL FIRE MANAGEMENT AND CONTROL
NSW Rural Fire Service and Planning NSW:
- Building in a Bushfire Prone Area
- Planning for Bushfire Protection
- Rural Fires Act 1997

BUFFER AREAS FOR DWELLINGS IN CLOSE PROXIMITY TO AGRICULTURE

The popularity of rural lifestyle opportunities has resulted in residential development locating in rural areas adjacent to land used for primary industry. A primary objective of rural planning is to provide for rural living opportunities that do not reduce the potential for productive primary industries to operate. Where dwelling houses are proposed to be located in rural areas, Council will need to be satisfied that normal farming practices on adjacent land are not inhibited. Measures may be required to ameliorate potential conflicts between rural residents and primary producers.

The main conflicts that can occur between residential development and primary producers may involve:

- spray drift from chemicals used in primary production
- noise from machinery
- dust from stock and/or machinery
- odours from farm related waste, silage, etc

Land in Orange most likely to involve chemical spraying includes land used for horticulture, viticulture and grain production.

Measures may be required to minimise potential conflicts between residents and primary producers. Maximum separation is the most effective means to control conflicts.
Restrictions are applied to aerial spraying within 150 metres of the curtilage of a dwelling house in accordance with the *Pesticides and Allied Chemicals Act.*

Separation distances may vary depending on the scale, type and times of operations.

Dwelling houses should be located the maximum practical distance, taking into account all other development influences from rural activities that can generate noise, dust, odour and chemical spray drift.

A vegetation “biological” buffer is appropriate for spray drift of chemicals applied by ground-based jets or boom sprays.

The buffer should:
- have a minimum width of 30 metres and attain a height of up to 15-20 metres
- comprise a range of fine-leaf native trees and shrubs in a variety of shapes, with leaf cover to the ground level and located in a manner that provides for airflow through the buffer vegetation

- not as an “impermeable” windbreak
- comprise vegetation with a mature height at least 1.5 times the height of the adjacent spray
- comprise plant species and varieties appropriate to the area
- be maintained to provide an effective buffer at all times, including replacing dead or dying plants as required

Appropriate plants for a biological buffer are listed below:

SUITABLE PLANTS FOR BUFFERS IN THE ORANGE AREA		
BOTANICAL NAME	**COMMON NAME**	**MATURE HEIGHT (m)**
ACACIA		
Baileyana	Cootamundra Wattle	6.0
Boormanni	Snowy River Wattle	4.0
Cardiophylla	Wyalong Wattle	3.0
Dealbata	Silver Wattle	12.0
Deanei	Deane’s Wattle	12.0
Decurrens	Green Wattle	12.0
Fimbriata	Fringed Wattle	6.0
Mearnsii	Black Wattle	16.0
Specatbilis	Mudgee Wattle	5.0
ALLOCASUARINA		
Cunninghamiana	River She Oak	20.0
Glauca	Swamp Oak	12.0
Torulosa	Forest Oak	15.0
BANKSIA		
Ericifolia	Heath Banksia	2.0
CALLISTEMON		
Pallidus	Lemon Bottlebrush	4.0
Pinifolius	Green Bottlebrush Red Bottlebrush	2.0 2.0
Salignus	Willow Bottlebrush	7.0
Seeberi	Alpine Bottlebrush	1.0
Subulatus		1.5

SUITABLE PLANTS FOR BUFFERS IN THE ORANGE AREA		
BOTANICAL NAME	**COMMON NAME**	**MATURE HEIGHT (m)**
EUCALYPTUS		
Aggregata	Black Gum	20.0
Goniocalyx	Long Leaf Box	15.0
Radiata	Narrow-Leaved Peppermint	30.0
Scoparia	Willow Gum	15.0
GREVILLEA		
Rosmarinifolia		2.0
HAKEA		
Sericea	Bushy Needlewood	2.5
LEPTOSPERNUM		
Flavescens	Common Tea Tree	4.0
Squarossum	Peach Tea Tree	2.5
MELALEUCA		
Armillaris	Honey-Myrtle	6.0
Bracteate	White Cloud Tree	10.0
Decussate	Cross-Leaved Honey-Myrtle	5.0
Ericifolia	Swamp Melaleuca	3.0
Halmaturorum	Salt Paper Bark	3.0
Incana	Grey Honey-Myrtle	2.0
Stypheliodes	Prickly-Leaved Paper-Bark	12.0



Photograph - Agricultural buffer in a rural residential area

PO 6.5-1 PLANNING OUTCOMES FOR DWELLINGS IN PROXIMITY TO AGRICULTURE AND OTHER RURAL ACTIVITIES

1 Dwelling houses should be located to minimise conflicts with the operation of activities associated with primary production.

2 Separation distances are outlined within **table PO 6.1(2)** in accordance with ***NSW DPI's 2018 interim buffer guidelines***, which specify tailored minimum distances based on land use type.

PO 6.1 (2) - Table of Recommended Separation Distances Between Agricultural and Non-Agricultural Land Uses

Agricultural Land Use	Distance (metres)	Source
Pig Farms (indoor)	**(1)1000a** **(2) 500**	(1) Living and Working in Rural Areas Handbook (2007) (2) For facilities holding less than 200 pigs - Draft Standard Instrument LEP (2017)
Pig Farms (outdoor)	**500**	National Environmental Guidelines for Outdoor Rotational Piggeries - Revised: Australian Pork Limited (2013)
Poultry (broiler & eggs) indoor and outdoor	**(1)1000b** **(2) 500**	(1) Living and Working in Rural Areas Handbook (2007) and Level 1 Odour Modelling case study (2) For facilities holding less than 1,000 birds - Draft Standard Instrument LEP (2017)
Dairies	**500c**	Including for facilities holding less than 50 head - Draft Standard Instrument LEP (2017)
Cattle Feedlots	**1000d** **500**	Living and Working in Rural Areas Handbook (2007) For facilities holding less than 50 head - Draft Standard Instrument LEP (2017)
Sheep or goat Feedlots	**500**	Living and Working in Rural Areas Handbook (2007)
Rabbits	**150e**	Rabbit Farming: Planning and Development Control Guideline: NSW DPI (2002)
Other intensive livestock	**250**	SEPP (Exempt and Complying Development Codes) 2008
Stock grazing	**50**	Living and Working in Rural Areas Handbook (2007)
Stock yards	**200**	SEPP (Exempt and Complying Development Codes) 2008 – Inland Code
Outdoor Cropping/sugar cane/turf farms	**300**	Living and Working in Rural Areas Handbook (2007)
Outdoor horticulture	**250**	SEPP (Exempt and Complying Development Codes) 2008
Protected cropping (greenhouses)	**250**	SEPP (Exempt and Complying Development Codes) 2008
Silos/grain storage bunkers	**100**	SEPP (Exempt and Complying Development Codes) 2008 – Inland Code
Fan assisted silos (Macadamia nuts)	**300**	Living and Working in Rural Areas Handbook (2007)

Source: *Buffer Zones to Reduce Land Use Conflict with Agriculture: An Interim Guideline (NSW Department of Primary Industries, November 2018, Primefact 1624, 1st Edition)*

Notes:

- In circumstances where the distances cannot be achieved, the maximum possible separation distance is to be observed in conjunction with a biological buffer, which is already established or currently being established in accordance with the requirements of this chapter.

- Subject to environmental assessment in accordance with the Australian Pork Limited AUSTRALIAN PORK LIMITED National Environmental Guidelines for Indoor Piggeries (NEGIP) May 2018.

- Subject to environmental assessment in accordance with Best Practice Management for Meat Chicken Production in NSW - NSW DPI (2012).

- Subject to environmental assessment in accordance with Environmental Management Guidelines for the Dairy Industry. NSW DPI (2008) if the dairy can accommodate 50 head or more.

- Subject to environmental assessment in accordance with the National Guidelines for Beef Cattle Feedlots in Australia, 3rd edition. Meat and Livestock Australia (2012).

- Subject to environmental assessment in accordance with Rabbit Farming: Planning and Development Control Guideline. NSW DPI (2002).

RELATED INFORMATION – BUFFER AREAS FOR DEVELOPMENT IN CLOSE PROXIMITY TO AGRICULTURE

1 NSW Department of Primary Industries, 2018, Interim buffer guidelines

GUIDANCE MATERIAL - ASSESSMENT OF AGRICULTURAL VIABILITY FOR RURAL LOT BOUNDARY ADJUSTMENTS

In assessing rural lot boundary adjustments, agricultural viability must be demonstrated having regard to the following key considerations:

Productivity

The extent to which each lot can support viable agricultural production without land use conflict. Consideration must be given to:

- Land and soil capability and suitability for sustainable agriculture

- Surrounding land uses and potential impacts on, or from, existing and approved agricultural activities

- Required separation distances to address land use and biosecurity risks

- The location and functionality of agricultural infrastructure (including water supply, livestock facilities, access, and storage)

- The adequacy of vehicular access arrangements

Sustainability

- The capacity of farming practices to maintain the long-term health of the land and natural resources. Consideration must be given to:

- Whether allotments retain sufficient land to support normal farming practices, including paddock rest where relevant

- Environmental constraints such as waterways, setbacks, and rocky or unusable land

- The use of natural features to support efficient and cost-effective farm management

Economic Viability

The ability of the agricultural enterprise to operate as a profitable and viable business. Consideration must be given to:

- Evidence that the enterprise can generate sufficient income to meet operating costs and support livelihoods
- Consistency with current and emerging agricultural trends within the LGA
- Access to essential transport, processing, utilities and supporting infrastructure

Resilience

The capacity of the agricultural enterprise to adapt to environmental, climate and market change. Consideration must be given to:

- Long-term viability in the context of climate change and rainfall variability
- Infrastructure needs to support adaptation, including protected cropping where relevant
- Opportunities for future expansion, diversification or value-adding activities
- Whether each lot retains suitable, unconstrained land to manage natural hazards (e.g. flood-free refuge areas)

PO 6.1 (3) - Table: Agricultural Viability Assessment Checklist

Assessment Area	Assessment Criteria	Yes / No / NA	Comments
Productivity	The proposed lots are capable of supporting productive agricultural use		
	Land and soil capability are suitable for sustainable agriculture on each lot		
	Surrounding existing or approved land uses will not result in land use conflict		
	Recommended separation distances are achieved to manage land use and biosecurity risks		
	Agricultural infrastructure remains functional and appropriately located (water supply, livestock facilities, sheds, storage)		
	Shared agricultural infrastructure and access arrangements are not adversely affected		
	Vehicular access arrangements are		

	retained or improved		
Sustainability	Each allotment retains sufficient land to support normal farming practices		
	Adequate land is available for paddock rest where relevant		
	Environmental constraints (e.g. waterways, buffers, rocky land) have been identified and managed		
	Natural features are used where possible to support efficient farm management		
Economic Viability	A business case demonstrates sufficient income to cover operating costs		
	The proposal supports a viable agricultural livelihood		
	The proposal is consistent with existing or emerging agricultural trends in the LGA		
	Access to essential infrastructure (transport, processing, utilities) is available		
Resilience	Long-term viability has been considered in the context of climate change		
	Rainfall patterns and seasonality are suitable for the proposed agricultural use		
	Infrastructure needed to support climate adaptation can be accommodated		
	Opportunities for future expansion, diversification or value-adding are retained		
	Each lot retains suitable, unconstrained land to manage natural hazards (e.g. flood-free land)		

RURAL FENCING

Fencing in rural areas contributes to the character of the area. Rural fencing is traditionally transparent comprising wire strands, netting or "ringlock" supported by steel posts, concrete or timber strainer posts.

Solid, screen or privacy fences typical of urban side and rear fences are not normally appropriate for boundary fences in rural areas and, where applied for privacy, need to be carefully designed and located in areas close to a dwelling and obscured from public view so that the fencing does not detract from the rural character of the area

In order to assist in maintaining effective rural operations, fencing guidelines are to apply to rural residential development to provide stock/rabbit-proof fencing:

RURAL FENCING GUIDELINES

Boundary fencing for rural sites (including rural residential lots) should be provided according to the following:

- Fence height of 1.2 metres
- Strainers spaced between 100 and 120 metres depending on terrain
- Steel post at 4 metre centres
- Two rows of 1.57 mm, high-tensile barbed wire along the top of the fences
- 2.5 mm high tensile wire strands at the top middle and bottom to support wire netting
- Galvanised 105 x 4 x 1.4 netting placed on the inside of the fence tied to the top, middle and bottom wires at about 600mm apart
- Netting to be dug in below ground surface where practicable
- Stock-proof floodgates (netting) to be provided as required
- One standard galvanised-steel farm gate with netting and bed log (minimum 3.66m) at the approved entrance and any paddock gateways

PEST ANIMALS IN RURAL AREAS

Rural Land Protection Boards have responsibility for controlling rural pest animals (including rabbits) and weeds. The Molong Rural Lands Protection Board has requested Council to assist with measures to control pest animals when rural land is subdivided. The Board has found that such issues can result in new, unsuspecting landowners being burdened with eradication costs.

The Board has requested that Council not grant consent to the subdivision of rural land until the Board has given its clearance that the property is free of pest animals.

Development applications for rural subdivision should demonstrate that the property has been assessed for pest animals and action taken prior to the issue of a subdivision certificate.

PEST ANIMAL CONTROL IN RURAL AREAS

- Development applications for the subdivision of rural zoned land include a report from the Rural lands Protection Board providing advice that the land is free of pest animals or includes recommendations (if any) for treatment of pest animals on the land.
- Pest-animal treatment is undertaken to the satisfaction of the RLPB prior to the issue of a subdivision certificate.

RESIDENTIAL ZONE

The Rural residential zones have been established to provide rural-lifestyle opportunities in planned areas within close proximity to the urban centre of Orange.



Photograph – Example of rural-residential development

The 2 hectare minimum has been applied to provide sufficient area for a dwelling house and curtilage, sewage-management facilities, “house” paddocks and reasonable outbuildings. The 2 hectare minimum also retains a semi-rural character and provides appropriate separation between dwelling houses. Lots smaller than 2 hectares are permitted where suitable arrangements are made for on-site sewage management facilities and the AVERAGE lot sizes are not less than 2 hectares.

The sum of the areas of all residential lots on the land >= 2 hectares number of lots created

For the purpose of averaging the areas of roads, open space or land set aside for non-residential uses are to be excluded from the sum of areas.

To provide for adequate on-site effluent facilities, it is deemed that a minimum of 1 hectare is required for averaging purposes. Lots created with areas greater than 4 hectares under the averaging provisions will include restrictions on the title advising that further subdivision is not available under the Rural “C” provisions.

The average lot size is intended to encourage subdivision that relates to the features of the site. In considering applications for development that applies the “average” lot size criteria, information is to be submitted that indicates how the subdivision pattern provides for the effective use of the site, taking into account the environmental attributes of the site.

The release of new areas for rural residential land is subject to development criteria and staging according to Council's adopted Rural Residential Strategy.

According to the general principles of the Rural Residential Strategy, development of land in Zone 1(c) should address the following:

- The impact of development on prime agricultural land should be minimised.
- Environmentally-significant lands should be excluded from development (for this purpose, land adjoining major creeks, heritage sites, remnant vegetation and sites having aboriginal archaeological significance are considered to be "environmentally significant").
- Sites identified as economic sources of extractive material or minerals should be avoided and protected from rural residential development.
- Hazard areas should be identified and appropriate management measures established. Hazards such as bushfire, landslip, erosion and flooding need to be assessed.
- The land is to be assessed for contamination, remediation measures undertaken as required in accordance with the relevant legislation and the site declared suitable for rural residential development.
- The suitability of land for on-site sewage management systems needs to be identified.
- Adequate water supply is to be provided. Where the development is to be connected to the public water supply system, the costs of provision of that supply are to be attributed to that development.

PO 6.6-1 PLANNING OUTCOMES FOR RURAL RESIDENTIAL SUBDIVISION IN ZONE 1(C)

1 Subdivision layout addresses topography, heritage, water resources and vegetation features.
2 Subdivision layout complies with bushfire-planning principles.
3 Large lots created in planned estates such as Clifton Grove and Ammerdown are retained to provide for a range of lot sizes.
4 Large lots created in subdivisions under LEP 2000 due to environmental limitations or due to average lot-size provisions are identified as being restricted from further subdivision.
5 A suitable area for buildings and sewage management systems is identified on subdivision plans as a "building envelope", with such area located for privacy and separation between dwellings on other sites and other rural activities in the locality.
6 Development and associated activities are to be kept clear of environmentally-sensitive land.
7 Lots less than 2 hectares are:
  - capable of containing buildings set back from boundaries an adequate distance to maintain the low-density rural residential character of the locality, as identified in building envelopes;
  - suitable for on-site sewage management systems.
8 Lots in Zone 1(c) are serviced by an appropriate on-site sewage management system.
9 Development does not increase the number of entrances to a main road (land prior to development is deemed to have a single opening onto a main road).
10 Driveways accessing a lot have sufficient sight distance at the entrance to a public road.
11 Development is constructed to the standard required under the *Development and Subdivision Code.*
12 Boundaries to agricultural land are adequately fenced.

RELATED INFORMATION - SUBDIVISION IN ZONE 1(C) RURAL RESIDENTIAL ZONE

1 Department of Urban Affairs and Planning (Now DIPNR), 2001, ***Better rural residential development***. DUAP Sydney.
2 Brochures and fact sheets on rural residential strategies are available from DIPNR: Rural Residential Strategy fact sheets

NOTE THE RESIDENTIAL CATEGORY RATE APPLIES TO LOTS LESS THAN 2 HECTARES OTHERWISE THE RURAL RESIDENTIAL RATE SHOULD APPLY.

6.7 MANAGED AGRICULTURE

The “Managed Agriculture” development option has been provided for multiple ownership as a means of attracting investment in the development of capital-intensive rural enterprises. Such projects may be appropriate for major horticultural and viticultural enterprises.

Development for “Managed Agriculture” must be based on a **Farm Plan** endorsed by NSW Agriculture. Such a plan should be prepared by a suitably-qualified professional and meet the “Farm Management Plan” guidelines in this Plan. The Farm Management Plan is to be included in the Management Statement for the Community Plan.

Applications for development consent to the subdivision of land by a Community Plan (under the *Community Land Development Act 1989*) are to include a copy of the Management Statement and Development Contract.

Buildings associated with managed operations (including machinery or storage sheds, packing sheds, processing) are to be located on Community Property.

The planning outcomes for rural subdivision are to apply to a community lot that is to be created for the purposes of a dwelling house.

A community lot approved for the purposes of a dwelling house is to be held conjointly with a community lot developed for agriculture under clause 34(1) of LEP 2000.

PO 6.7-1 PLANNING OUTCOMES FOR MANAGED AGRICULTURE

1 Agricultural lots are subject to Community Schemes that comply with the Community Land Development Act 1989.
2 Buildings, plant and work (including dams) associated with managed-agriculture operations are located on Community Property.
3 Development for “Managed Agriculture” must be based on a Farm Plan endorsed by NSW Agriculture (refer Section 6.8).
4 Suitably qualified professionals prepare the “Farm Plan” in accordance with the “Farm Plan” guidelines in this Plan.
5 The Farm Plan is included in the Management Statement for the Community Plan.
6 The planning outcomes for houses on rural land (including building envelopes, on-site sewage management, contaminated land assessment, etc) apply to a community lot that is to be created for the purposes of a dwelling house.
7 Where a Community Plan provides, effluent from on-site sewage management systems is be able to be disposed of on Community Property.

6.8 FARM PLANS

LEP 2000 Cl 31
LEP 2000 Cl 33

BACKGROUND

Approximately two-thirds of the City area comprises productive rural land. Rural land contributes to the function and character of the City by providing for:

- agricultural production (in the order of $30M each year for Orange City alone out of about $190M for the District)
- rural-landscape character as a foundation for tourism and recreation

Unnecessary or inappropriate fragmentation of rural land affects the ability of rural land to continue to be used for agriculture and erodes the rural character of the area. To ensure that rural land resources retain the potential for agriculture and the community-valued rural character, the City's plans include specific measures for conserving the rural-land resource through managing rural development.

Orange LEP 2000 encourages the management of agricultural land. One way this is achieved is by requiring farm management plans ("**Farm Plan**") to be submitted with development applications that include proposals to subdivide farming land into lots with areas less than 100ha for use with agriculture. The Farm Plan will assist in determining the merits of each proposal to subdivide rural land for agriculture.

In this clause, "farming land" refers specifically to land within Zone 1(a) or Zone 7 under Orange LEP 2000.

FARM PLAN REQUIREMENTS

A Farm Plan must demonstrate to Council how:

- the land as subdivided is capable of supporting productive and environmentally-sustainable agriculture
- the land will be used according to accepted sustainable land-management practices
- natural resources are to be conserved (including water, soil and vegetation systems)

Suitably-qualified and experienced professionals must prepare a Farm Plan. Qualifications in the fields of agricultural sciences, agricultural economics and land management are appropriate skills for input into the Farm Planning process. Members of a related professional association are preferred. The qualified professional must sign the Farm Plan.

The Farm Plan forms part of a development application and will be available for public inspection. Any sensitive financial information will be kept confidential where required.

The Farm Plan is to be in the form of a written submission with associated plans and maps.

A Farm Plan must, as a minimum, include information (including maps as necessary) on the following:

Physical aspects

- Existing features - landform, occurrences of land degradation, services, dams, fencing creeks, major trees; windbreaks, etc
- The proposed planning and layout of the land including access, fencing, areas for buildings and yards etc
- Proposed (or existing) dwelling location and residences in the proximity
- Measures to minimise impact of farm operations on residences in the locality

Business plans and finances

- A five-year business plan indicating the commodity or commodities that are proposed and associated sensitivity analysis based on reliable agricultural economic forecasts including:
  - financing strategies
  - marketing proposals for agricultural commodities (particularly produce for niche or specialised markets)

Environmental considerations

- Land-capability assessment including assessment of soil suitability (including fertility, type, structure) and erosion susceptibility
- Land contamination assessment for areas to be disturbed as a consequence of the development
- Measures proposed to restore and manage any degraded areas (gully erosion, salinity, etc)
- Identification of water sources and impacts on surface or groundwater systems, and water supply and quality in water- supply catchment areas
- Evidence of existing and proposed water-allocation licences
- Identification of revegetation proposals

PO 6.8-1 PLANNING OUTCOMES FOR FARM PLANS	
1	Farm plans submitted with development applications demonstrate that the land will be used for sustainable agriculture and that a net environmental benefit will accrue as a consequence of the protection and/or restoration of natural resources (native vegetation, eroded land, waterways, etc).

RELATED INFORMATION – FARM PLANS

1 Department of Land and Water Conservation. ***Farming for the Future: Property Planning - How to produce a physical property plan***. NSW Agriculture "Tocal" Paterson

2 Jacobs, S and I Chapman. 1997. ***Sustainable Land Use***. Primary Industries and Natural Resources Educational Services Consortium, Western Institute of TAFE, Orange.

3 Reeve, I & D Brouwer. ***Your Farm's Future: How to Measure its Sustainability***. NSW Agriculture. "Tocal" Paterson.

4 Property Management Planning Course

NOTE Where the completed Farm Plan needs to be endorsed by NSW Agriculture prior to being submitted with the development application:

Refer the Farm Plan for endorsement to Agricultural Environment Officer

Central West Region NSW Agriculture

PO Box 865

DUBBO NSW 2830

6.9 RURAL LAND MONITOR

Information on rural development in the Zone 1(a) and Zone 7 areas will be derived from data contained in Council's property database. Such information will be provided on request.

Information provided includes:

- A map indicating land affected by subdivision 31, 32 and 33.
- A register identifying the decision, date of decision, subdivision type and number of new lots.

PO 6.9-1 PLANNING OUTCOMES FOR THE RURAL LAND MONITOR	
1	Information collected on rural development provides a strategic resource for future rural planning in the City.

6.10 DWELLING HOUSES IN RURAL AREAS

DWELLING HOUSES ON EXISTING HOLDINGS

Orange LEP 2000 defines housing opportunities in rural areas. Houses are permitted according to lot sizes or according to the subdivision history.

An existing holding may be a single parcel or the aggregation of adjoining or adjacent parcels as they were on 24 January 1964.

Where land is still in the same configuration that it was on 24 January 1964, then consent can issue for a house on the land irrespective of the holding size. To determine if a property comprises an existing holding may involve considerable historic research.

Road widening or acquisition of land does not affect an existing holding for a public purpose.

An existing holding may have included land separated by a road or defined creek. There have been a number of instances in Orange where a part of rural land separated by a road has been sold off to adjoining landowners. In such instances, the residue will not comprise an existing holding.

Where land does not comprise an existing holding, minimum lot sizes under Orange LEP 2000 apply.

Where a dwelling house may not be permissible on a parcel because the land once formed part of a larger holding has been "excised" from a larger rural holding without development consent, the land may only be used for a purpose permitted under clause 29 of LEP 2000 for Zone 1(a) other than a dwelling house.

PO 6.10-1 PLANNING OUTCOMES FOR EXISTING RURAL HOLDINGS	
1	Development applications demonstrate that the subject land comprises the whole of an existing holding including historic ownership pattern from title documents.

SITING AND DESIGN CONSIDERATIONS FOR RURAL HOUSES



Photograph - Rural dwelling located to benefit from landscape, views and solar access

To ensure that dwelling houses are consistent with the use and features of rural land, consideration should be given to the following in design:

Design

- Houses should be orientated to maximise the northern aspect of living areas. Special attention to design of living areas may be required to also achieve the highly-sought-after mountain views predominantly to the south and the west.
- Native vegetation is to be retained and embellished.
- The dwelling should be located away from boundaries (particularly where agricultural operations exist or are reasonably expected to occur.
- Vegetation buffers are established where adjacent to horticultural enterprises.

- The house and reasonable curtilage should be fenced to contain the buildings and minimise ground maintenance.
- Outbuildings should be located at the rear of the main house when viewed from the road and form a “homestead group” of buildings. Shearing sheds and hay sheds are appropriate away from the homestead group.

Siting

- The dwelling site must be suitable for dwelling construction, free from contamination, capable of accommodating a sewage management system, positioned on flood-free land and accessible to a public road at all times.
- Building envelopes may have been established and investigations of site conditions undertaken at the subdivision stage.

PO 6.10-2 PLANNING OUTCOMES FOR RURAL DWELLING HOUSES

1 The dwelling house complies with Council's *Energy Smart Homes Code.*
2 The dwelling house is sited on land identified as being suitable for construction and free from contamination, flooding and bushfire risk.
3 Privacy and views of neighbouring houses are retained.
4 A suitable area is available for perpetual on-site disposal of wastes.
5 Substantial remnant vegetation is protected from disturbance.
6 An adequate water supply is provided.
7 All-weather access to a public road is provided.
8 Entry gateways are set back sufficiently from the front boundary to allow vehicles to pull up off the public road carriageway.
9 A buffer area is established in the vicinity of agricultural operations.
10 Outbuildings are located in proximity of and to the rear of the main dwelling house when viewed from the nearest road.



Photograph - traditional grouping of rural buildings

6.11 RURAL DUAL OCCUPANCY

Rural dual occupancies have been provided in Orange LEP 2000 to:

- allow for accommodation for extended families
- provide accommodation for farm employees
- provide supplementary income as rental accommodation, farm-stay accommodation, etc

Rural dual occupancies are permitted:

- on land having a minimum area of 2 hectares on land within Zone 1(c)
- on land having a minimum area of 16 Hectares on land within Zone 7
- on land in Zone 1(a) where a dwelling house is permitted

A rural dual occupancy may be permitted where:

- both dwellings are located on the same lot, parcel or portion
- the dwellings are attached or in close proximity (ie, separated by reasonable garden areas but still appear as a group of related buildings)
- the land is capable of sustaining two dwellings (taking into account requirements for sewage-management systems, water supply and utilities such as power and communications)
- the dwellings blend into the landscape in scenic areas
- remnant bushland is conserved

Existing outbuildings may be considered for conversion to dual occupancy provided the outbuildings are located on the same lot, parcel or portion as the other dwelling house. The existing character of outbuildings, particularly traditional timber, galvanised-iron sheds should be retained.

"CLOSE PROXIMITY"

Dwellings in rural dual occupancies must be either attached or in "close proximity" to each other under clause 26 of LEP 2000. The Plan does not provide a standard distance for what constitutes "close proximity", rather it is proposed to apply the principle that rural buildings should be clustered to reflect the traditional rural landscape character where groups of buildings are set amongst rural open spaces.

The form that building clusters should take will depend on the particular rural character of the locality. Design and siting requirements for rural dwelling houses also apply to dual occupancies.

PO 6.11-1 PLANNING OUTCOMES FOR RURAL DUAL OCCUPANCIES	
1	Both dwellings achieve the planning outcomes for rural dwellings outlined in section 6.10.
2	Both dwellings are located on the same lot and in close proximity to provide a rural character where dwellings form part of a discrete cluster of buildings in a rural setting.
3	On-site sewage management systems adequately provide for 2 dwellings.
4	Detached dwellings are designed to complement each other in scale and form (both dwellings do not have to be the same but do need to appear as a group).

6.12 SALE OF RURAL PRODUCE

Clause 36 provides for the sale of rural produce from rural holdings. This clause replaces provisions for roadside stalls and cellar-door sales in the previous plan (Orange LEP 11).

Under LEP 2000, rural sales may be permitted only from within the property, not from within a road reserve.

Development Consent is required for the sale of rural produce, including cellar-door sales.

The purpose of this provision in Orange LEP 2000 is to provide for reasonable and legitimate opportunities for on-site sales of rural produce (including wine products) from rural properties that promote tourism opportunities in a manner that maintains and enhances the rural character and landscape and provide safe access for visitors.

Rural produce offered for sale must be substantially grown or produced from that property. Produce from the land and other land may be sold - such as the cellar-door sales of wine, subject to a vigneron's licence, where grapes may also be sourced from other land in addition to the site of the cellar- door sales.

There must be a physical nexus between the agricultural land and the sales area. The building or place used for the sale of rural produce must be on the same land.

To demonstrate a nexus, there must be sufficient agricultural land in production to sustain a sales area.

“Offering for sale” includes sampling and tasting of produce (such as wine tasting).

The size of the sales area should relate to the size of agricultural operations - for example, a small vineyard requires only a small tasting/sales area.

Buildings should blend with the landscape. The use of existing rural buildings is encouraged.

Conservation of historic rural outbuildings is appropriate. Such buildings, works, relics or places should be identified with development applications.

Access to the property from a public roadway must be sited to allow safe turning in and out of the land. All weather access is to be provided to a clearly-defined car-parking area with sufficient car parking spaces to meet demand. The car-parking area is to be located in close proximity to the sales/tasting area and be designed and marked and include directions that are clear to visitors.

Specific intersection treatment may be required to provide for safe and convenient turning onto or from a road.

Sealed access and parking areas are to be provided where the operations have the potential to generate significant numbers of visitors or buses.

A single advertising sign within the land may be permitted to identify the sale of rural produce. Sales areas must comply with health requirements for the handling of foodstuffs.

PO 6.12-1 PLANNING OUTCOMES FOR SALES OF RURAL PRODUCE (INCLUDING CELLAR DOOR SALES)

1 The application clearly identifies the productive use of the land, the sales area, parking areas, advertising, access and intersection treatment.

2 Buildings are designed to blend into the rural landscape through colours and building design.
NOTE Conversion of rural buildings is encouraged, and heritage principles should be applied to conserving historic rural buildings.

3 A single, well-designed advertising sign only is established on the land. There are no advertising signs on road reserves.

4 Evidence that a valid Vigneron's “Off-licence” has been obtained is provided to Council prior to operating cellar-door sales.

5 Customer car parking is provided at the rate of 1 space for every 40m^2 of sales area.
NOTE Sales area is deemed to be the net area accessible to customers.

6 All-weather access is provided from a public road to parking areas.

7 A suitable intersection is provided at the property entrance to a standard appropriate for the scale of development and function of the road.

(next page is Page 6A.1)